

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

3. M-CV-0093144 BIRAK, SATPAL v. HERRERA, JOSE

Application For Stay of Execution

Appearances of the parties are required at the hearing.

4. M-CV-0096170 MULLER, ANDRES v. MACRAE, WESTON

Motion to Set Aside Default and/or Default Judgment

Defendant moves to set aside the default and/or default judgment entered against him on May 26, 2026.

Code of Civil Procedure section 473, subdivision (b) allows the court to set aside a default judgment “taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted . . .” (Code Civ. Proc., § 473, subd. (b).) Here, defendant’s application was not accompanied by a copy of an answer or other responsive pleading to be filed therein.

Code of Civil Procedure section 473, subdivision (d) also provides the court may set aside any void judgment or order. However, defendant presents insufficient evidence that the default and/or default judgment are void.

Accordingly, defendant’s motion is denied.

5. M-CV-0096410 LHE WOODCREEK v. TORRANCE, DEBORAH

Defendant’s Demurrer to Complaint for Unlawful Detainer

Defendant demurs to plaintiff’s verified complaint on the grounds the complaint does not allege facts sufficient to state an unlawful detainer cause of action because the three-day notice to pay rent or quit is deficient. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (SC